

Law Firm DPDPA Starter Checklist

Your law firm doesn't just protect client confidentiality — it stores, shares and retains client data every day. Work through these ten areas to bring matter intake, client KYC, sensitive-file handling, junior/intern access, court/vendor sharing and closed-file retention under DPDPA-ready control.

Client KYC

PAN / Aadhaar

Sensitive Matters

Evidence Files

WhatsApp Intake

Junior Access

External Counsel

Legal Tech / AI

Closed Matters

Breach Response

How to use this: tick what you already do, and turn the unticked boxes into your next actions. Start with sensitive-matter classification, junior/intern access and external sharing — they remove the most risk for the least effort.

1 Client & matter-data inventory

- ☐ List where client and matter data is collected — onboarding, KYC, contracts, pleadings, evidence.
- ☐ Record what each matter file holds, why, and who can access it.
- ☐ Collect only the documents the matter actually needs.
- ☐ Keep one primary matter file so you always know what you hold.
- ☐ Update the engagement letter to explain data use, sharing, storage and retention.

2 KYC / PAN / Aadhaar / passport handling

- ☐ Store ID proofs in access-controlled systems, not open folders or inboxes.
- ☐ Restrict who can open PAN/Aadhaar/passport copies.
- ☐ Don't keep duplicate ID copies across WhatsApp, email and devices.
- ☐ Mask or limit ID numbers where the full value isn't needed.
- ☐ Delete ID documents you no longer need for the matter.

3 Sensitive-matter classification

- ☐ Mark family, criminal, employment, medical, whistleblower, harassment and disciplinary matters as sensitive.
- ☐ Restrict sensitive files to the matter team only.
- ☐ Don't store sensitive matters alongside regular matter files.
- ☐ Define who approves access to a sensitive matter.
- ☐ Review sensitive-matter access periodically.

4 Evidence, screenshots & media files

- ☐ Store evidence files, screenshots, call records and videos in controlled locations.
- ☐ Avoid keeping evidence copies across personal phones, WhatsApp and email.
- ☐ Track where each piece of evidence is stored and who has accessed it.
- ☐ Apply stricter access to evidence in sensitive matters.
- ☐ Delete or archive evidence per your retention rules once the matter closes.

5 WhatsApp / email / client document intake

- ☐ Prefer a secure portal or structured upload link for client documents.
- ☐ Reduce intake of sensitive records and evidence through informal WhatsApp.
- ☐ Don't accept matter documents through personal accounts of juniors/staff.
- ☐ Keep a record of what was received, from whom, and when.
- ☐ Move intake documents into the matter file promptly, then clear them from chats/inboxes.

6 Junior, intern & paralegal access

- ☐ Give juniors, interns and paralegals access only to the matters they work on.
- ☐ Avoid shared logins — give each person their own account, with MFA.
- ☐ Review who can access which matter folders at least twice a year.
- ☐ Brief every joiner on client confidentiality and DPDPA basics.
- ☐ Don't let interns use personal laptops/email for client work.

7 External counsel, clerk & filing-agent sharing

- ☐ Share client documents externally only with a defined purpose and controlled access.
- ☐ Keep a record of what was shared, with whom, and why.
- ☐ Brief clerks, filing agents and couriers on handling matter documents.
- ☐ Track physical files sent to court, client, counsel or filing agents.
- ☐ Share the minimum needed for the filing, brief or expert opinion.

8 Legal tech / AI / document-review tools

- ☐ List the legal-tech, e-discovery and document-review tools that touch client data.
- ☐ Use only approved AI/drafting tools with data controls — not public tools case-by-case.
- ☐ Confirm what each tool stores, for how long, and where.
- ☐ Put data-handling terms (a DPA) in place with each platform.
- ☐ Avoid pasting sensitive client data into public AI tools.

9 Closed matter file retention

- ☐ Set a retention period by matter and record type, based on limitation and professional needs.
- ☐ Don't keep every closed matter file indefinitely by default.
- ☐ Schedule a periodic review to archive or delete files past their period.
- ☐ Have a process for client return, correction or deletion requests.
- ☐ Write retention rules down so the whole firm applies them consistently.

10 Wrong-recipient & breach response

- ☐ Write a one-page plan: who to call and what to do first if a matter file reaches the wrong person.
- ☐ Know how to quickly lock a compromised email, WhatsApp account or cloud folder.
- ☐ Keep a contact list (IT, software vendor, and a way to reach affected clients).
- ☐ Be ready to notify the Data Protection Board and affected clients as required.
- ☐ After any incident, record what happened and what you changed.